Richmond Public Schools AI Policy: Data and Student Privacy Passages

Excerpted verbatim from *New Policy: Artificial Intelligence, School Board Policy Revision, Policy Committee Review (Second Review), March 16, 2026 (Richmond Public Schools, Virginia; draft policy with Appendix A and Appendix B)*. Page numbers refer to the PDF pages of the source file. This is a draft policy committee document. Its text layer is interleaved with margin line numbers and a vertical DRAFT watermark, so passages are marked [graphic] and were transcribed with the line numbers and watermark letters removed. Ellipses (…) mark omitted text.

Definitions: Personally Identifiable Information (PII)

Source: PDF page 2 [graphic]

[graphic] Personally Identifiable Information (PII): Any data that could identify an individual, including names, student IDs, photographs, or digital identifiers.

Guiding Principles: Safety and Privacy

Source: PDF page 3 [graphic]

- [graphic] Safety and Privacy: All AI applications shall protect student and staff data in accordance with law and Board policy.

Instructional Use (excerpt)

Source: PDF page 4 [graphic]

[graphic] The Division encourages the responsible integration of artificial intelligence (AI) into instructional practice to enhance curriculum delivery, create differentiated materials, support personalized learning, and prepare students for future academic and workforce opportunities to the extent it is aligned with the Division's commitment to equity, inclusion, and data privacy.

Instructional Use: Critical AI Literacy and Safety

Source: PDF pages 5–6 [graphic]

[graphic] Critical AI Literacy and Safety: Students will receive developmentally appropriate instruction on how AI systems collect, retain, and reuse data; where outputs can be inaccurate or fabricated; and how AI interactions may introduce social, psychological, civic, or safety risks. Instruction shall include strategies for verification, healthy boundaries with AI systems, and reporting of harmful or concerning AI outputs. Such instruction shall cover the following:

- [graphic] 1. Data Practices: How AI tools may collect, infer, store, and reuse user inputs and metadata; differences between school-approved tools and public tools; and why students should not enter sensitive personal information.
- [graphic] 6. Civic and Legal Context: High-level understanding that digital content, prompts, and platform metadata may be disclosed through lawful legal processes. Students shall be instructed in data-minimization practices and safe, appropriate sharing in digital systems.

Instructional Use: Equitable Access and Instruction (excerpt)

Source: PDF page 6 [graphic]

[graphic] … including an understanding of the prohibition of sharing any personally identifiable information.

Professional and Administrative Use (excerpt)

Source: PDF page 7 [graphic]

[graphic] The Division shall provide AI tools that are evidence-based, accessible, and compliant with Division standards prior to implementation, and shall publish and annually update a list of approved AI tools for staff use.

[graphic] The Division shall provide all certified and instructional staff with an initial mandatory training on AI that reviews: … the ethical use of AI, including bias prevention and responsible data handling, … and safe and secure use of AI.

Ethics, Data Privacy, and Security

Source: PDF pages 8–10 [graphic]

[graphic] All users of AI systems are responsible for taking into consideration the broader ethical implications associated with these technologies, specifically addressing issues around environmental sustainability (e.g., energy consumption of large models), labor practices (e.g., data labeling and outsourcing), and compliance with all applicable local, state, and federal laws and regulations. Our primary ethical responsibility is harm reduction, which requires continuous monitoring of AI outputs to prevent violations of privacy, avoid the perpetuation of misinformation, and safeguard against any action that could diminish human oversight or unduly influence critical decision-making processes regarding student progress and welfare.

[graphic] The Division shall comply with all applicable local, state, and federal data-privacy laws, including the Family Educational Rights and Privacy Act (FERPA), the Children's Online Privacy Protection Act (COPPA), and other relevant Virginia statutes. All practices shall also align with recognized national standards such as the National Institute of Standards and Technology (NIST) Privacy and Cybersecurity Frameworks, and, where applicable, with international privacy frameworks such as the General Data Protection Regulation (GDPR). The Division shall also align with the Virginia Department of Education's Digital Learning Integration Guidelines as they pertain to privacy and emerging technologies.

[graphic] The Division shall safeguard and minimize the collection and retention of personally identifiable information (PII) and limit access to authorized personnel only. No AI system shall collect, store, or transmit PII without prior approval through the Division's vetting process and a signed Data Privacy Agreement that defines permissible uses, retention limits, and security standards.

[graphic] Under no circumstances may any personally identifiable information or other confidential data be entered into publicly accessible generative AI tools that have not been formally approved by the Division. When using approved generative AI tools, users must limit input to the absolute minimum amount of data required to complete the task. Anonymized or de-identified data should be used whenever possible.

[graphic] The Division prohibits the use of AI-generated visuals in any manner that falsely represents real students, staff, schools, activities, or events, or that conflicts with Division brand standards, accessibility requirements, privacy protections, or public trust obligations. AI image tools may not be used where they require the upload, entry, or generation of personally identifiable information except through approved tools and approved data practices.

[graphic] AI systems handling student data shall comply with FERPA requirements for consent, disclosure, and access rights. AI systems processing staff, parent, or community data shall use such data solely for legitimate educational or operational purposes, consistent with division policy.

[graphic] All AI tools and vendors shall implement security-by-design practices that ensure encryption, secure hosting, and breach-response procedures consistent with the Division's requirements for AI tools. The Division shall conduct privacy impact assessments for all AI systems prior to adoption to evaluate data flow, storage, and potential risks. Any data breach, misuse, or unauthorized disclosure involving AI systems shall be promptly investigated and reported in accordance with Division and state incident-response procedures.

[graphic] The Division shall ensure approved AI tools use only the minimum data necessary to perform their educational or operational function. No AI tool shall transmit or store student or staff data to third parties without express Division approval and written contractual privacy assurances.

[graphic] Vendors are prohibited from using Division data for AI model training or algorithm development. AI tools shall not reuse, sell, or employ data for model training or secondary purposes without explicit written consent from the Division and, when applicable, from parents or guardians. For AI systems relying on cloud or generative platforms, data shall be anonymized or de-identified to the fullest extent possible.

[graphic] The Division shall maintain and publish a list of approved AI tools and their intended purposes.

[graphic] Parents and guardians shall have the right to opt out of student participation in AI-supported instructional activities when feasible alternatives are available. Staff and students may request that their personal data not be used for AI training or automated decision-making systems. Requests for data access, correction, or opt-out shall follow procedures established under FERPA and Division data-access protocols.

[graphic] The Division shall obtain verifiable parental consent for any AI tool or service used with students under the age of thirteen (13) that collects or processes personal data, in compliance with the Children's Online Privacy Protection Act (COPPA).

[graphic] The Division prohibits any AI use that infringes on student rights, undermines academic integrity, or enables unauthorized surveillance. This includes, but is not limited to, the use of AI tools for academic dishonesty, discriminatory profiling, unauthorized data collection, or any other application that conflicts with Division policy, law, or ethical standards.

[graphic] AI-based monitoring or data analysis for safety or security purposes may be employed only when expressly authorized by the Superintendent or their designee, consistent with applicable law and Board policy, and limited to the minimum scope necessary to protect student and staff safety.

[graphic] Reports of misuse, bias, or data breaches shall be addressed promptly in accordance with procedures established by the Superintendent or their designee.

[graphic] Users shall immediately notify the Director of Technology Services, or their designee, of any suspected or confirmed data breach, security vulnerability, or accidental transmission of personally identifiable information (PII) through a non-approved AI tool. The Division shall follow a documented Incident Response Protocol, which includes prompt investigation, mitigation, containment, and regulatory notification to affected parties consistent with state and federal law.

[graphic] The Division shall maintain transparency with students, parents, and staff regarding the use of AI technologies. The list of approved tools, their intended purposes, and related privacy protections shall be published on the Division's website.

Procurement and Vendor Review

Source: PDF pages 11–12 [graphic]

[graphic] All AI systems, tools and vendors shall undergo a formal vetting and approval process prior to procurement or classroom use. The Division shall evaluate such systems and tools for instructional alignment, data security, equity impact, ethical design, and fiscal responsibility. AI tool evaluations shall include review by the following departments:

- [graphic] Technology Services – to assess data security, encryption, and access controls.
- [graphic] Legal Services – to verify compliance with FERPA, COPPA, intellectual-property rights, and liability protections.

[graphic] The Division shall maintain and publish a list of approved artificial intelligence tools that have undergone a formal security, privacy, and instructional review. The use of any AI tool not appearing on this list for official Division business or instruction is strictly prohibited. This provision is intended to prevent unapproved or "shadow AI" use and to safeguard student and staff data

[graphic] The Director of Technology Services, or their designee, shall ensure that all approved AI vendors meet Division security standards, including:

- [graphic] Data Encryption – All data must be encrypted in transit and at rest.
- [graphic] Access Control – Vendors must use robust, role-based access controls limiting access to authorized personnel.
- [graphic] Audit and Monitoring – Vendors shall maintain detailed logs of all data access and provide the Division with regular security audit reports

[graphic] The Division shall discontinue and block use of any AI tool that fails to demonstrate compliance with Division standards or intended educational benefit.

[graphic] Detailed procedures for evaluation, adoption, pilot implementation, and annual review of AI tools shall be established by the Superintendent or their designee and maintained as the Division's AI Tool Vetting and Vendor Review Procedures.

Appendix B: AI Tool Vetting and Vendor Review Procedures, Step 3. Data Privacy and Security Review

Source: PDF pages 15–16 [graphic]

- [graphic] Determine whether the tool collects or stores personally identifiable information (PII).
- [graphic] If yes, confirm compliance with FERPA, COPPA, HIPAA (for special education or health data), and, where applicable, GDPR.
- [graphic] Verify that:
- [graphic] Data are encrypted in transit and at rest.
- [graphic] Servers are hosted in the United States.
- [graphic] The vendor provides clear data usage and retention policies.
- [graphic] Vendor data are not used to train proprietary models or for commercial purposes.
- [graphic] Tools failing privacy or security standards shall be rejected or flagged for remediation by Technology Services and Legal.

Appendix B: Step 5. IT and Cybersecurity Review (excerpt)

Source: PDF page 16 [graphic]

- [graphic] Verify compliance with Division Cybersecurity Standards Rubric (referencing the US Department of Education Protecting Student Privacy and Cyber.org K–12 Standards).